

VCL326586 Wells Fargo Bank, NA vs. Gomez III, John M

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-17

Motion: Plaintiff's Motion for Summary Judgment

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Re: Wells Fargo Bank, NA vs. Gomez III, John M

Case No.: VCL326586

Date: August 17, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motion for Summary Judgment

Tentative Ruling: To grant the unopposed motion

Facts

In this matter, Plaintiff sues Defendant under breach of written contract and breach of implied contract.

Defendant applied for and was issued a Wells Fargo credit card ("Subject Account") ending in 9870. (UMF Nos. 1, 16.)

Plaintiff sent Defendant the credit card along with the written Customer Agreement associated with the credit card. (UMF Nos. 2, 17.) Defendant accepted the terms of the written agreement when they used the Wells Fargo Visa Credit Card. (UMF Nos. 3, 18.)

Pursuant to the terms of the Customer Agreement associated with the card, Plaintiff would extend credit to Defendant whereby Defendant could charge goods, services, or obtain cash advances on the credit line. (UMF Nos. 4, 19.) In exchange, Defendant was to repay the principal amount lent plus applicable interest and finance charges. (UMF Nos. 5, 20.) In accordance with the Customer Agreement, Defendant used the account, and made payments, charges, and incurred a balance thereon. (UMF Nos. 6, 21.)

Plaintiff sent Defendant monthly statements of the Subject Account each and every billing period. (UMF Nos. 7, 22.) The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and

interest incurred for each billing period. (UMF Nos. 8, 23.)

There is no record of any unresolved disputes on the account. (UMF Nos. 9, 24.) There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account. (UMF Nos. 10, 25.)

Defendant's last payment on the Subject Account was on August 5, 2024. (UMF Nos. 11, 26.) Thereafter, no further payments were made by the Defendant, and therefore, pursuant to the terms of the Customer Agreement, Defendant was in default. (UMF Nos. 12, 27.)

The balance due on Defendant's Subject Account is \$8,701.10. (UMF Nos. 13, 28.) As a result of Defendant's unpaid balance, Plaintiff has been damaged in the sum of \$8,701.10. (UMF Nos. 14, 29.)

Defendant admitted all of the above facts in response to Plaintiff's Request for Admissions. (UMF Nos. 15, 30.)

No opposition has been filed.

Authority and Analysis

A plaintiff moving for summary judgment must make a prima facie showing that there are no triable issues of fact to meet its initial burden of production. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.App.4th 826, 861.) "[A] [plaintiff] moving for summary judgment [must] present evidence, and not simply point out that the [plaintiff] does not possess, and cannot reasonably obtain, needed evidence." *Aguilar*, at 854, fn. omitted. Circumstantial evidence to support a plaintiff's summary judgment motion "can consist of factually devoid discovery responses from which an absence of evidence can be inferred," but the burden should not shift without stringent review of the direct, circumstantial, and inferential evidence." (*Scheiding v. Dinwiddle Construction Co.* (1999) 69 Cal.App.4th 64, 83.)

Once the plaintiff has met its burden, the burden shifts to the defendant to make a prima facie showing that a triable issue of material fact exists. (*Aguilar*, *supra*, 25 Cal.App.4th at 850.) "A prima facie showing is one that is sufficient to support the position of the party in question. [citation] No more is called for." (*Id.* at 851.) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material facts and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. 437c(c).)

From a review of the undisputed material facts supplied in Plaintiff's separate statement of undisputed material facts and the evidence that offered in support of these material facts that plaintiff supplied in this response, the Court finds that Plaintiff has met its burden to that no triable issues of fact exist.

To establish a claim for breach of contract, Plaintiff must establish: (1) the existence of the contract, (2) Plaintiffs' performance or excuse for nonperformance, (3) defendants' breach, and (4) the resulting damage to Plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

"A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct." (*Yari v. Producers Guild of America, Inc.* (2008) 161 Cal.App.4th 172, 182.)

Here, the first elements are met by Nos. 1 through 8 and 16 through 23.

The second elements are met by Nos. 4, 9, 10, 12, 13, 19, 24, 25, 27, and 28.

The third elements are met by Nos. 5, 11, 12, 13, 14, 20, 26, 27, 28, and 29.

The fourth elements are met by Nos. 13, 14, 28, and 29.

Therefore, the Court grants the motion and will sign the proposed order.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.